

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

1. MICHAEL HAMMEL V. MICHELLE HAMMEL

25FL1040

On March 10, 2026, Petitioner filed a Request for Order (RFO) seeking property control orders. The RFO and other required documents were served on March 9th, however the Notice of Tentative Ruling was not served. He filed and served a supplemental declaration on May 21st.

Respondent filed and served her Responsive Declaration to Request for Order, Declaration of Michelle Hammel, and a Memorandum of Points and Authorities on May 21st.

Petitioner's reply declaration was filed and served on May 27th.

Respondent filed and served an additional declaration on June 1, 2026. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all opposition papers are to be filed at least nine court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made May 21st the last day for filing therefore the court has not read or considered this document.

Petitioner is requesting an order to sell the home located at 137 Opus One Court in El Dorado Hills which, as he states, is his separate property home though he concedes there may be a small community property interest. In furtherance of the requested order, Petitioner also requests an order directing Respondent to vacate the property and any other orders the court deems just and fair.

Respondent opposes the request arguing that the premarital agreement is unenforceable and therefore, the Opus One property is not Petitioner's separate property.

Petitioner objects to the court's consideration of Respondent's May 21st declaration on the basis that the title of that declaration is not listed on the Proof of Service. Given the defect in service the court has not considered the declaration. The FL-320 and the Memorandum of Points and Authorities, however, have been read and considered.

While Respondent's argument attacking the premarital agreement may or may not have merit, the court's analysis does not stop there. The court may order the sale of real property even if it is characterized as community property. In fact, the court holds broad

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

discretion to “[a]t any time during the proceeding...order the liquidation of community or quasi-community assets so as to avoid unreasonable market or investment risks...” Cal. Fam. Code § 2108. That said, here the court does not find that the home is at risk of foreclosure or other significant loss of the asset. As such, the request to sale the marital residence is denied.

Regarding the request for an order directing Respondent to vacate the property, the court does find there to be a dispute as to the characterization of the property that requires the presentation of evidence and a long cause hearing. Accordingly, the court is reserving jurisdiction over this issue until the time of trial on property division.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court’s adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #1: THE REQUEST TO SELL THE MARITAL RESIDENCE IS DENIED. THE COURT RESERVES JURISDICTION ON THE REQUEST FOR AN ORDER DIRECTING RESPONDENT TO VACATE THE PROPERTY UNTIL THE TIME OF TRIAL.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT’S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 4, 2026
8:30 a.m./1:30 p.m.

2. MEGAN DOYLE V. GRANT DOUGLAS DAKIN

25FL0122

On March 11, 2026, Petitioner filed a Request for Order (RFO) seeking custody and visitation orders as well as attorney's fees. She filed her Income and Expense Declaration on March 10th. All required documents were electronically served on March 18th.

The parties attended Child Custody Recommending Counseling (CCRC) on April 10, 2026. A report containing agreements and recommendations was prepared and mailed to the parties on May 8th.

Respondent filed a Responsive Declaration to Request for Order on May 15th, it was served on May 11th.

Petitioner is requesting an order requiring the custodial parent to immediately notify the other parent in the event of an emergency. She also requests a right of first refusal if the custodial parent is unavailable for 24 hours or, alternatively, a parenting schedule that allows the minor to visit with Respondent during his non-work hours. She asks that the custodial parent be ordered to arrange transportation to and from the minor's regularly scheduled activities and minor's counsel to be appointed on behalf of the minor. Finally, Petitioner requests attorney's fees in the amount of \$6,000 pursuant to Family Code § 2030.

Respondent opposes the RFO and asks the court to sanction Petitioner in the amount of \$5,000 pursuant to Family Code § 271.

After reviewing the filings as outlined above the court finds the agreements and recommendations contained in the May 8, 2026 CCRC report to be in the best interests of the minors and they are hereby adopted as the orders of the court. The parties are to maintain a 50/50 parenting timeshare. Respondent's parenting time is to coincide with his days off work.

The requests for a right of first refusal and the appointment of Minor's Counsel are both denied. The court has already specified that the right of first refusal does not apply in absences due to work. Regardless, the new parenting schedule should remedy that issue. Turning to the appointment of Minor's Counsel, the court does not find it necessary to do so at this time.

Each parent is ordered to arrange for transportation to and from the minor's regularly scheduled activities during his or her parenting time. If that parent is unable to arrange for transportation, the non-custodial parent shall be given the opportunity to